



Bill Number: S.B. 1564

Dunn Floor Amendment

**Reference to: HEALTH AND HUMAN SERVICES
Committee Amendment**

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Expands the electronic monitoring information that assisted living facilities and nursing care institutions must submit to the Department of Health Services (DHS) to include whether the facility uses:
 - a) electronic monitoring devices in the common spaces of the facility; and
 - b) a technology solution that allows the facility to monitor and identify who enters and exits a resident's room and the movement or activity of the person while in the resident's room.
2. Requires assisted living facilities and nursing care institutions to notify DHS of any changes to the facility's use of electronic monitoring or a technology solution.

DUNN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1564
(Reference to HEALTH AND HUMAN SERVICES Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 36-420.06, to read:

4 36-420.06. Electronic monitoring; disclosure; posting;
5 definitions

6 A. ON [OR BEFORE DECEMBER 1, 2026 OR ON] INITIAL LICENSURE ~~[AND~~
7 ~~RELICENSURE]~~, EACH ASSISTED LIVING FACILITY AND NURSING CARE INSTITUTION
8 SHALL DISCLOSE TO THE DEPARTMENT [IN A DEPARTMENT-APPROVED FORMAT] WHETHER
9 THE ASSISTED LIVING FACILITY OR NURSING CARE INSTITUTION~~{[~~
10 1.]} ALLOWS RESIDENTS TO INSTALL AN ELECTRONIC MONITORING DEVICE IN
11 THE RESIDENT'S ROOM OR PERSONAL SPACE.

12 ~~{[2. USES ELECTRONIC MONITORING DEVICES IN THE COMMON SPACES OF THE~~
13 ASSISTED LIVING FACILITY OR NURSING CARE INSTITUTION.

14 3. USES A TECHNOLOGY SOLUTION THAT ALLOWS THE ASSISTED LIVING
15 FACILITY OR NURSING CARE INSTITUTION TO MONITOR AND IDENTIFY WHO ENTERS
16 AND EXITS A RESIDENT'S ROOM AND THE MOVEMENT OR ACTIVITY OF THE PERSON
17 WHILE IN THE RESIDENT'S ROOM.

1 B.}} [A LICENSEE FOR AN ASSISTED LIVING FACILITY OR NURSING CARE
2 INSTITUTION SHALL ENSURE THAT THE DEPARTMENT IS NOTIFIED IN A
3 DEPARTMENT-APPROVED FORMAT OF ANY CHANGES WITH RESPECT TO WHETHER THE
4 ASSISTED LIVING FACILITY OR NURSING CARE INSTITUTION ALLOWS RESIDENTS TO
5 INSTALL AN ELECTRONIC MONITORING DEVICE IN THE RESIDENT'S ROOM OR PERSONAL
6 SPACE {{OR CHANGES ITS USE OF ELECTRONIC MONITORING OR A TECHNOLOGY
7 SOLUTION PURSUANT TO SUBSECTION A OF THIS SECTION}}.]
8 {{C.}} THE DEPARTMENT SHALL MAKE {{THIS}} INFORMATION {{IT RECEIVES
9 PURSUANT TO THIS SECTION}} AVAILABLE ON THE DEPARTMENT'S PUBLIC WEBSITE.
10 {{B-}} {{D.}} FOR THE PURPOSES OF THIS SECTION:
11 1. "ELECTRONIC MONITORING":
12 (a) MEANS THE USE OF AN ELECTRONIC MONITORING DEVICE IN THE ROOM OF
13 A RESIDENT OF A NURSING CARE INSTITUTION OR ASSISTED LIVING FACILITY TO
14 RECORD OR TRANSMIT SOUNDS OR ACTIVITY TO OR FOR THE RESIDENT, THE
15 RESIDENT'S AUTHORIZED REPRESENTATIVE OR AN AUTHORIZED THIRD PARTY.
16 (b) INCLUDES THE TAPES OR RECORDINGS FROM THE ELECTRONIC MONITORING
17 DEVICE.
18 2. "ELECTRONIC MONITORING DEVICE" MEANS ANY DEVICE OR TECHNOLOGY
19 THAT HAS A PLACED, FIXED OR OTHERWISE INSTALLED LOCATION, THAT CAPTURES,
20 RECORDS OR BROADCASTS AUDIO OR VIDEO, OR BOTH, AND THAT IS USED FOR
21 ELECTRONIC MONITORING.
22 3. "RESIDENT" MEANS A PERSON WHO RESIDES IN AN ASSISTED LIVING
23 FACILITY OR NURSING CARE INSTITUTION.

24 Enroll and engross to conform
25 Amend title to conform

TIMOTHY "TIM" DUNN

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03/02/2026
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